

## 26STCV10542 26STCV10542

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 26STCV10542 Hearing Date: June 24, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 24, 2026

Case Name: Santamaria v. Magic Mountain LLC, et al.

Case No.: 26STCV10542

Matter: Motion to Strike

Moving Party: Defendants Magic Mountain LLC and Six Flags Entertainment

Corporation

Responding Party: Plaintiff Elena Santamaria

Notice: OK

Ruling: The Motion to Strike is denied.

Moving parties to give notice.

The Court encourages all parties to appear remotely via LA

CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an employment action.

Defendants Magic Mountain LLC and Six Flags Entertainment Corporation now seek to strike the Complaint's references to punitive damages.

Motions to strike are used to challenge defects in the pleadings not subject to demurrer. Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc. § 435(b)(1).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (Id. § 437(a).) The Court may strike out any irrelevant, false, or improper matter inserted in any pleading, and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. § 436.) An "irrelevant" matter includes any "demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Id. § 431.10(b)(3), (c); see also *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1036-1042.)

Punitive damages are available when the plaintiff establishes oppression, fraud, or malice by clear and convincing evidence. (Civ. Code § 3294(a).)

Malice means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) In this context, despicable conduct is conduct considered "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715, internal quotation marks omitted.) Oppression means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) Fraud means "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id. § 3294(c)(3).)

The Complaint goes beyond mere boilerplate assertions, detailing a deliberate, continuous course of conduct where corporate supervisors repeatedly disregarded Plaintiff's safety and rights. Specifically, Plaintiff alleges that management ignored severe sexual harassment and battery complaints for weeks, actively suppressed a report of physical violence by instructing her not to contact Human Resources or the police, and ultimately forced her into a retaliatory "take it or face termination" transfer that required her to work side-by-side with her known sexual harasser. These specific acts, combined with the allegation that a Human Resources representative stated the transfer "had already been signed off on," provide a sufficient factual basis at the pleading stage to infer malice, oppression, and corporate ratification or authorization by a managing agent.

Therefore, the Motion to Strike is denied. An answer is to be filed within 10 days.

Moving party to give notice.